

Court No. - 39

Case :- WRIT - C No. - 9527 of 2021

Petitioner :- Navi Hasan

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- R.P.S. Chauhan

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Deepak Verma,J.

Learned counsel for the petitioner prays for and is granted permission to delete the respondent no. 4 from the array of the parties during course of the day.

The petitioner seeks to challenge the assessment notice dated 21.07.2020 on the ground that the provisional assessment notice has been treated as final assessment without disposal of objections filed by the petitioner to the provisional assessment notice served upon him.

Sri Pranjal Mehrotra, Advocate has received notices on behalf of respondents No. 2 and 3. It is directed that he shall receive instructions in the matter within a period of ten days.

This order may be intimated to Sri Pranjal Mehrotra within 24 hours.

Put up on 02.04.2021 as fresh.

Order Date :- 16.3.2021

Meenu

In Residence

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Hon'ble Dinesh Pathak,J.

The matter has been heard through Video Conferencing.

Sri Pranjal Mehrotra learned Advocate for the respondent nos. 2 and 3 admits that the objection dated 28.8.2020 allegedly filed by the petitioner on 31.8.2020 in accordance with the provisions of the U.P. Electricity Supply Code, 2005 had been received in the office of respondent no. 3 and that the same had not been decided. It is stated that as on date, final assessment order has not been passed.

As per instructions of Sri Pranjal Mehrotra learned counsel for the respondent nos. 2 and 3, no coercive proceeding has yet been commenced against the petitioner.

By means of the present writ petition, the challenge is to the provisional assessment notice dated 21.7.2020 issued by respondent no. 3.

Sri R.P.S. Chauhan learned counsel for the petitioner vehemently submits that the final demand notice cannot be issued without disposal of the written objections filed by the petitioner on 28.8.2020.

Only prayer made during the course of argument is to issue a direction to respondent no. 3 to decide the pending objections.

In view of the same, the writ petition is **disposed of** with the direction to the respondent no. 3 namely the Executive Engineer, Electricity Distribution Division-II, District Moradabad to decide the objections filed by the petitioner in accordance with the provisions of the U.P. Electricity Supply Code, 2005 which admittedly is pending before him.

It is made clear that the final demand notice or any coercive proceeding shall not be initiated against the petitioner without disposal of his statutory objections.

The respondent no. 3 shall decide the pending objections as expeditiously as possible.

Order Date :- 7.5.2021

Brijesh